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Arabic Documents from Medieval Nubia

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5. LEGAL DOCUMENTS

5.1. Document 44: Lease of Land (Rajab 518 AH/ August 1124 AD)¹

This document records a lease by a certain Raḥma ibn Sa‘īd, from a man called Danī ibn Kannān, of shares of land in Danī’s estate (‘*iqṭā’*), which was assigned to him by ‘the office of the (Fatimid) ruler’ (*dīwān al-sulṭān*). The sheet of paper on which the document was written also contains letter 38, which was addressed to Danī ibn Kannān. Letter 38 is likely to have been written first, with the address on the verso, and the legal document 44 was subsequently written in the space under the address. In the legal document, Danī has the gentilic al-Šakrīyābī. This relates to Wādī al-Šakrīyābī, which is mentioned in an Arabic document from the Ottoman period found at Qaṣr Ibrīm (Hinds and Sakkout 1986, document no. 27). In this Ottoman document, Wādī al-Šakrīyābī is said to be *min ‘amal ‘Ibrīm* ‘in the administrative district of Ibrīm’. In letter 38, Danī has the title *al-‘aqīd*, which appears to have denoted a ‘military officer’. In Fatimid Egypt, an ‘*iqṭā’*’ typically consisted of agricultural land leased to a military grantee (*muqṭa’*) for a sum of money payable to the treasury (see §9.16).

It is indicated in document 44 that the estate was located on the island of ‘Abū Fāris lying ‘to the west of the border of

¹ I published a preliminary edition of this document in Khan (2013). Several of the readings in the present edition differ from those of the preliminary edition.

Nubia' (بالغرب من حد النوبة). This seems to indicate that the estate was on one of the islands in the area of the first cataract of the Nile lying to the west of the border of Nubia, which was situated at the village of al-Qaṣr on the east bank of the Nile just south of Bilāq (Philae; §2.5.4). The 'iqṭā' estate, which was bestowed by the Fatimid government, must have been outside of Nubian territory.

The 'office of the ruler' (*dīwān al-sultān*) was presumably the *dīwān al-'iqṭā'āt*, which is mentioned by al-Maḳzūmī (*Kitāb al-Minhāj*, 70).

The lessee leased "three shares from twenty-four shares in total, held in common." This division into twenty-four shares is connected with the laws of inheritance, in which the shares of the heirs are calculated in twenty-fourths (Grohmann, APEL I, 172). This lease of land from an 'iqṭā' was a form of subletting, whereby the lessee had right to three parts out of twenty-four of the income on the land.

The lessor, Danī ibn Kannān, was evidently not resident on the land. The fragmentary address of letter 38 reads "[The land] of Marīs... to the leader Danī ibn Kannān," which suggests that Danī was resident in Marīs. This would explain why the document containing 38 and 44 was found in Qaṣr Ibrīm. Furthermore, Wādī al-Šaḳriyābī, to which Danī's *nisba* relates, was situated within the administrative district of Ibrīm. A *muqṭa'* frequently lived away from his 'iqṭā' (Rabie 1972, 63). We have here, therefore, the case of a Fatimid military officer resident in Nubia. The writer of letter 38 to Danī calls himself in the address "his (i.e., Danī's) son (*waladihi*), Muḥammad ibn 'Abū Ḥayy." The

fact that the writer was called Muḥammad indicates that he was a Muslim. This may imply that Danī was a Muslim. The term *walad*, however, is often used in the letters as a polite metaphorical term to designate somebody of subordinate status, so Danī may have been a Nubian Christian, which is what his name suggests. If so, then we would have here a case of a Nubian resident in Nubia who served as a Fatimid military officer.

The letter **38**, which mentions agriculture, is presumably referring to the cultivation of the *'iqtā'* in question.

The lease is for a period of one year “beginning in (the Coptic month of) Kīhak (December–January).” The name Kīhak is a variant name of the Coptic month name Koiak, which is also spelt كياك in Arabic. The use of a Coptic month to specify the start date was due to the fact that the collection of land tax (*karāj*) was calculated according to the *karājī* year, which corresponded to the Coptic solar year consisting of 365 days. The Muslim lunar (*hilālī*) year was shorter than the *karājī* year by approximately eleven days. Thirty-three lunar years corresponded to thirty-two solar years (Ibn Mammātī [d. 606 AH/1209 AD], *Kitāb Qawānīn al-Dawāwīn*, 358). Land tax (*karāj*) related to agricultural produce and was collected seasonally at the time of the harvest, i.e., according to the solar year. The administration of the *karāj*, however, worked with lunar years. In order to prevent complications, the solar year was periodically brought into line with the lunar year. This was achieved by disregarding one solar year every thirty-three lunar years. The operation was termed تحويل السنة (al-Qalqaṣandī [d. 821 AH/1418 AD], *Ṣubḥ al-ʿĀšā*, XIII:54–55). The last *taḥwīl* of the Fatimid period was